

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: C23-01280

CASE NAME: LAURIE MIMS VS. GWEN BERTOLAMI LYSONS

HEARING ON MOTION FOR DISCOVERY ORDER DEEMING REQUESTS FOR ADMISSION ADMITTED AGAINST GWEN BERTOLAMI LYSONS

FILED BY:

TENTATIVE RULING:

This tentative ruling is for Lines 18 and 19. This hearing on these discovery motions was continued from June 3, 2026 to July 9, 2026 to allow counsel to meet and confer to resolve the discovery disputes. Counsel are ordered to appear remotely via Zoom to advise the Court about the status of these discovery disputes.

19. 9:01 AM CASE NUMBER: C23-01280

CASE NAME: LAURIE MIMS VS. GWEN BERTOLAMI LYSONS

HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS TO GWEN BERTOLAMI LYSONS

FILED BY:

TENTATIVE RULING:

See Line 18, above.

20. 9:01 AM CASE NUMBER: C25-00677

CASE NAME: MARIEL HERNANDEZ VS. FORD MOTOR COMPANY

HEARING ON MOTION FOR DISCOVERY TO COMPEL FURTHER RESPONSES TO PLAINTIFFS REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

FILED BY: HERNANDEZ, MARIEL

TENTATIVE RULING:

Summary

Plaintiff Mariel Hernandez's Motion to Compel Further Responses to Plaintiff's Request for Production of Documents, Set One, is **denied** for failure to comply with mandatory meet-and-confer requirements.

Background

This action arises under the Song-Beverly Consumer Warranty Act. Plaintiff Mariel Hernandez ("Plaintiff") seeks statutory remedies for alleged defects in a 2020 Ford Transit Connect purchased from Defendant Ford Motor Company ("Defendant"). On December 10, 2025, Plaintiff served Requests for Production of Documents, Set One. Defendant responded on January 14, 2026. Plaintiff contends these responses are non-compliant, contain only boilerplate objections, and violate the

Discovery Act and governing authority.

Plaintiff asserts she "met and conferred" by sending written correspondence. As discussed below, the parties failed to satisfy the statutory meet-and-confer requirements.

Analyses

This Court maintains that discovery motions in consumer warranty cases are overused and should be discouraged, absent genuine noncompliance. Counsel are advised to consider carefully whether filing such motions is truly warranted. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed., CEB) § 15.32[C].

Moreover, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed., CEB) § 15.38.6.

The obligation to meet and confer prior to filing any discovery motion is mandatory. Parties must engage in a reasonable and good faith attempt to informally resolve discovery disputes. See Cal. Code Civ. Proc. § 2016.040; *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 138. Contra Costa County Superior Court Local Rule 2.121(e) imposes the same requirement. Additionally, Local Rule 2.122(c) provides that motions "should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved."

Cal. Code Civ. Proc. § 2016.040 requires, at minimum, that attorneys **confer in person, by telephone, or by video conference to informally resolve disputes**. [Emphasis added] Written correspondence inviting opposing counsel to "call me if you should have any further questions or comments" or, in this case, giving opposing counsel one week to respond before filing a motion, is insufficient. See *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 429, 431-433. Applied here, Plaintiff's counsel sent written correspondence dated January 19, 2026, as her sole effort to meet and confer. This letter, without any telephonic or video conference discussion as required by statute, fails to satisfy the statutory mandate.

Because Plaintiff and Defendant did not comply with the strict requirements of Cal. Code Civ. Proc. § 2016.040, the motion is **denied**. The Court need not, and does not, reach the merits of the responses and objections where counsel has failed to satisfy this fundamental statutory prerequisite.

Ruling

1. Plaintiff's Motion to Compel Further Responses is **denied**.
2. Defendant shall prepare and electronically file a proposed order conforming to this ruling, attaching a copy of this tentative ruling, no later than five (5) days from the date of the hearing.
3. Counsel are admonished to strictly comply with the meet-and-confer requirements of Cal. Code Civ. Proc. § 2016.040 for the discovery motion currently calendared for August 5, 2026.

Courtroom Clerk's Session
Add On

21. 9:01 AM CASE NUMBER: C25-03586

CASE NAME: ED PENNING VS. FAIRWAY INDEPENDENT MORTGAGE CORPORATION

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: FAIRWAY INDEPENDENT MORTGAGE CORPORATION

TENTATIVE RULING:

Before the Court is Defendant Fairway Independent Mortgage Corporation's ("Fairway" or "Defendant") demurrer. The demurrer relates to Plaintiff Ed Penning's ("Plaintiff" or "Mr. Penning") Complaint for (1) violation of the California Invasion of Privacy Act ("CIPA"), Penal Code section 631; (2) violation of CIPA, Penal Code section 632; (3) violation of CIPA, Penal Code section 638.51; (4) breach of contract; and (5) violation of California's Unfair Competition Law ("UCL"), Business and Professions Code section 17200.

Defendant demurs to all five causes of action in Plaintiff's Complaint pursuant to Code of Civil Procedure section 430.10(e) on the grounds that each fails to state facts sufficient to constitute a cause of action. Defendant further contends that (1) Plaintiff's "expansive" interpretation of CIPA is not supported by the statute's plain language; (2) Plaintiff consented to Defendant's privacy policy and the privacy policies of Meta and Yahoo, which precludes each of Plaintiff's CIPA claims; and (3) breach of contract is not supported because Plaintiff failed to allege the required elements of breach of contract, there has been no CIPA violation, and Plaintiff is unable to allege that he lost money or property stemming from Defendant's alleged conduct.

Plaintiff opposes Defendant's demurrer on the grounds that (1) Plaintiff did not consent to Defendant's use of third-party trackers; (2) Plaintiff sufficiently alleged his claim for violation of Penal Code section 631 in that third-party trackers read Plaintiff's in-transit communications and Defendant aided the third-party trackers; (3) Plaintiff adequately alleged his claim for violation of Penal Code section 632; (4) Plaintiff's pen register claim was properly pled; (5) Defendant breached its contract with Plaintiff and the class; and (6) Defendant's conduct constitutes unfair business practices.

For the following reasons, Defendant's demurrer is **OVERRULED IN PART AND SUSTAINED IN PART**.

Plaintiff has 15 days from the date of entry of this order to file and serve any amended pleading.

I. Request for Judicial Notice

Defendant requests judicial notice of five exhibits pursuant to Evidence Code sections 452(h) and 453, and because Defendant contends they are incorporated by reference in the Complaint: